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CITY ATTORNEY'S IMPARTIAL ANALYIS OF MEASURE D

Measure D is a voter-sponsored initiative measure. If approved, Measure D would amend the Los Altos ("City") Municipal Code by adding a new Chapter 14.92 entitled "Downtown Parking Plazas." Measure D defines the Downtown Parking Plazas as the "publicly-accessible, open and surface parking lots located in the Downtown area which are owned by the City." They are commonly known as Plazas 1 through 10.

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The 2026 Ballot Measure Impact Analysis - 9212 Report ("9212 Report") for Measure D found that "… the Ballot Measure would potentially limit new development by adding additional constraints to development on the City-owned Downtown Parking Plazas. Although there is an exception for 'affordable housing' on Plazas 7 and 8, it is not clear if mixed-income housing or other development programs that include affordable housing could be approved without a subsequent Ballot Measure. This would impact development of even affordable multifamily housing on all these lots, including Plazas 7 and 8, by potentially complicating development opportunities. This would impact Program 1.H ('Facilitation housing on City-owned sites') and other Housing Element programs and policies."

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Unless approved by a majority vote of the City's voters, Measure D would prohibit the City from taking the following actions affecting the Parking Plazas: selling, leasing, or otherwise conveying them; changing their use which would dimmish the availability of public parking; declaring them as surplus land; constructing any capital project that permanently diminishes the availability of public parking; modifying them by adding additional levels; modifying them in a way that would negatively affect protected trees or tree canopy; or entering into a development agreement or similar agreement that would allow a third-party to take action prohibited by it.

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Measure D provides few actions to be taken without a majority vote of the City's voters such as maintaining and repairing the Parking Plazas and hosting the farmers' market or similar short-term events.

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The processing, interpretation, and validity of Measure D would be governed by the Election Code and state law. The 9212 Report found "If the Ballot Measure were to pass and then subsequently be challenged in court, the City would be required to pay defense costs of the challenge and potentially indemnify the proponents. The City would also be required to defend the Ballot Measure and any implementation of the Ballot Measure, until ended by voters." The 9212 Report attached the June 15, 2026, YIMBY Law letter that stated, "To dispel any potential ambiguity, we are prepared to sue Los Altos the instant this measure is adopted." Measure D's defense costs would come from the City's General Fund.

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A "Yes" vote will prohibit the City from selling, leasing, conveying, declaring surplus, or permanently repurposing the Parking Plazas for any use other than surface parking without a majority vote of the City's voters.

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A "No" vote will preserve the City's discretion to use the Parking Plazas for any use permitted by local, state, and/or federal law.

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Jolie Houston, Los Altos City Attorney / end

The above statement is an impartial analysis of Measure D. If you desire a copy of the measure or ordinance, please call the City Clerk's office at 650-947-2700.

(Female)

FILED
AUG 18 2026
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By [redacted] Deputy

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